COMMERCIAL AGREEMENT - RECORD 006

Helioscope Robotics, Inc. - diligence file reference COMMERCIAL_CONTRACTS-006

1. Recitals and defined terms

This Reseller and Deal Registration Agreement is made between Helioscope Robotics, Inc. as Provider and Fathom Mobility Systems Ltd as Reseller, a systems integration business organised in Ontario, contracting through Fathom Mobility Systems Ltd. Fathom and the Provider have agreed that terms defined in the recitals and in Exhibit A carry the same meaning throughout, and that a defined term used in an Order has the meaning given here unless the Order expressly varies it.

The parties have recorded in Exhibit C that acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. Deliberately so: the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. For Fathom, a systems integration operator running 1 site out of Ontario, the point matters because the Reseller and Deal Registration Agreement is administered site by site. The obligation as it applies to Fathom was tightened at signature, and Article 6 (Fees and Payment) carries the negotiated wording rather than the standard wording.

Save as Exhibit A otherwise provides, the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. As a matter of construction, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Fathom runs 1 site from Ontario in systems integration, so the Reseller and Deal Registration Agreement is administered locally and this clause is applied per site. Where Fathom has raised a query the Provider has answered by reference to Article 13 (Licences), and the exchange is on the contract file.

On the terms of Schedule 2, each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. By design, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Running 1 site in systems integration, Fathom takes this obligation at site level rather than centrally under the Reseller and Deal Registration Agreement. Administration of this obligation for Fathom sits with the account team rather than with central contracts, and Article 13 (Licences) is where it is evidenced.

The Provider has undertaken to Fathom that either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. As to enforcement, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Ontario is where Fathom runs systems integration operations across 1 site, and the Reseller and Deal Registration Agreement follows that footprint. Because Fathom operates in systems integration, the practical burden of this clause falls on its Ontario operation, and Article 8 (Acceptance) governs how it is measured.

Fathom reseller agreement - Exhibit D - Component Prices, Lead Times and Sourcing

Fathom price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
FAT-P0001	part 2497-W	drive unit	$1,705	18	350	single source	last-time-buy notice 12 months
FAT-P0002	part 7927-J	castor assembly	$962	23	150	qualification in progress	last-time-buy notice 12 months
FAT-P0003	part 2558-J	optical sensor	$2,163	10	600	dual sourced	last-time-buy notice 12 months
FAT-P0004	part 2801-F	gearbox	$75	10	200	single source	EOL notice 6 months
FAT-P0005	part 1012-F	drive unit	$1,313	25	500	dual sourced	EOL notice 6 months
FAT-P0006	part 4227-Y	controller board	$1,857	8	500	single source	last-time-buy notice 12 months
FAT-P0007	part 7298-H	harness	$436	11	400	dual sourced	no EOL commitment

Fathom price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
FAT-P0008	part 8746-I	controller board	$963	23	150	single source	last-time-buy notice 12 months
FAT-P0009	part 7734-Q	gearbox	$2,307	21	550	qualification in progress	last-time-buy notice 12 months
FAT-P0010	part 8760-E	controller board	$339	20	250	qualification in progress	last-time-buy notice 12 months
FAT-P0011	part 4952-M	controller board	$217	21	100	dual sourced	last-time-buy notice 12 months
FAT-P0012	part 9261-F	optical sensor	$1,870	12	350	qualification in progress	EOL notice 6 months
FAT-P0013	part 6225-C	optical sensor	$157	8	500	dual sourced	EOL notice 6 months
FAT-P0014	part 2323-C	optical sensor	$811	7	200	qualification in progress	last-time-buy notice 12 months
FAT-P0015	part 5849-X	encoder	$1,091	22	450	qualification in progress	EOL notice 6 months
FAT-P0016	part 8094-O	drive unit	$515	19	300	qualification in progress	EOL notice 6 months
FAT-P0017	part 3786-P	castor assembly	$190	16	550	qualification in progress	last-time-buy notice 12 months
FAT-P0018	part 5722-S	battery module	$221	9	200	qualification in progress	EOL notice 6 months
FAT-P0019	part 1319-J	harness	$923	22	50	qualification in progress	last-time-buy notice 12 months
FAT-P0020	part 2215-G	drive unit	$388	8	500	qualification in progress	no EOL commitment
FAT-P0021	part 1326-D	harness	$1,650	8	500	dual sourced	no EOL commitment
FAT-P0022	part 7655-J	harness	$1,936	6	100	qualification in progress	no EOL commitment
FAT-P0023	part 3414-M	encoder	$1,252	12	550	qualification in progress	last-time-buy notice 12 months
FAT-P0024	part 7262-F	encoder	$958	20	550	qualification in progress	last-time-buy notice 12 months
FAT-P0025	part 7990-S	controller board	$573	14	550	dual sourced	no EOL commitment
FAT-P0026	part 8438-B	gearbox	$224	20	400	dual sourced	no EOL commitment
FAT-P0027	part 7981-G	battery module	$1,682	21	250	single source	EOL notice 6 months
FAT-P0028	part 5262-Q	battery module	$112	22	250	single source	no EOL commitment
FAT-P0029	part 2210-D	gearbox	$628	8	150	dual sourced	last-time-buy notice 12 months
FAT-P0030	part 4458-N	battery module	$2,367	5	350	single source	EOL notice 6 months
FAT-P0031	part 9145-P	harness	$2,360	10	400	dual sourced	EOL notice 6 months
FAT-P0032	part 6007-Y	drive unit	$2,396	14	350	qualification in progress	no EOL commitment
FAT-P0033	part 1504-U	controller board	$52	10	50	qualification in progress	no EOL commitment
FAT-P0034	part 6421-G	harness	$561	17	600	single source	EOL notice 6 months
FAT-P0035	part 4174-O	encoder	$119	18	500	dual sourced	no EOL commitment
FAT-P0036	part 6805-W	optical sensor	$1,869	9	350	dual sourced	last-time-buy notice 12 months

Fathom price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
FAT-P0037	part 4367-U	harness	$1,227	8	350	qualification in progress	no EOL commitment
FAT-P0038	part 9898-P	battery module	$72	6	300	dual sourced	EOL notice 6 months
FAT-P0039	part 2008-L	castor assembly	$1,243	21	350	single source	no EOL commitment
FAT-P0040	part 7026-I	battery module	$204	13	250	single source	EOL notice 6 months
FAT-P0041	part 7711-P	optical sensor	$1,614	12	550	single source	EOL notice 6 months
FAT-P0042	part 3942-E	drive unit	$2,304	22	450	single source	EOL notice 6 months
FAT-P0043	part 7755-K	drive unit	$1,010	8	50	single source	last-time-buy notice 12 months
FAT-P0044	part 8183-F	drive unit	$1,641	7	150	dual sourced	EOL notice 6 months
FAT-P0045	part 3042-U	encoder	$1,415	24	300	single source	last-time-buy notice 12 months
FAT-P0046	part 2864-R	battery module	$407	9	350	qualification in progress	EOL notice 6 months

1. Recitals and defined terms - part 2 of 2

Rows of the 1. Recitals and defined terms resume here, numbered on from the part immediately preceding, so a reference cited once resolves in only one place. The sequence is unbroken either side of it.

Nothing in this part varies how the 1. Recitals and defined terms was compiled, and the headings given at the start remain the operative ones. No row is omitted at the join.

Fathom reseller agreement - Exhibit D - Component Prices, Lead Times and Sourcing (continued, part 2 of 2)

Fathom price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
FAT-P0047	part 7321-G	drive unit	$1,203	25	350	single source	EOL notice 6 months
FAT-P0048	part 5539-R	drive unit	$1,172	25	200	single source	no EOL commitment
FAT-P0049	part 7648-L	battery module	$1,955	12	200	dual sourced	EOL notice 6 months
FAT-P0050	part 3927-E	encoder	$810	19	50	qualification in progress	last-time-buy notice 12 months
FAT-P0051	part 7450-T	harness	$187	11	550	qualification in progress	no EOL commitment
FAT-P0052	part 7398-D	drive unit	$2,060	24	150	dual sourced	EOL notice 6 months
FAT-P0053	part 7258-Q	gearbox	$1,141	10	550	qualification in progress	last-time-buy notice 12 months
FAT-P0054	part 4714-Z	battery module	$349	6	200	dual sourced	last-time-buy notice 12 months
FAT-P0055	part 5155-R	drive unit	$1,795	21	100	dual sourced	last-time-buy notice 12 months
FAT-P0056	part 1919-X	drive unit	$886	10	150	single source	last-time-buy notice 12 months
FAT-P0057	part 3349-Y	optical sensor	$165	20	450	qualification in progress	last-time-buy notice 12 months
FAT-P0058	part 3173-F	gearbox	$910	14	450	qualification in progress	last-time-buy notice 12 months
FAT-P0059	part 9650-O	battery module	$141	19	150	qualification in progress	last-time-buy notice 12 months

Fathom price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
FAT-P0060	part 7023-G	encoder	$1,355	13	350	dual sourced	last-time-buy notice 12 months
FAT-P0061	part 7870-K	battery module	$2,067	8	350	dual sourced	last-time-buy notice 12 months
FAT-P0062	part 5310-N	controller board	$1,656	8	150	dual sourced	last-time-buy notice 12 months
FAT-P0063	part 3356-A	battery module	$2,030	13	600	qualification in progress	no EOL commitment
FAT-P0064	part 6104-M	castor assembly	$447	22	500	dual sourced	EOL notice 6 months
FAT-P0065	part 4220-Y	harness	$1,365	7	50	single source	last-time-buy notice 12 months
FAT-P0066	part 7951-X	castor assembly	$43	12	250	single source	no EOL commitment
FAT-P0067	part 4522-P	drive unit	$977	14	350	qualification in progress	no EOL commitment
FAT-P0068	part 6105-X	harness	$1,813	17	500	dual sourced	EOL notice 6 months
FAT-P0069	part 1638-I	optical sensor	$2,128	9	150	dual sourced	no EOL commitment
FAT-P0070	part 9961-N	drive unit	$451	24	400	qualification in progress	last-time-buy notice 12 months
FAT-P0071	part 1333-Y	encoder	$1,382	15	50	qualification in progress	no EOL commitment
FAT-P0072	part 4733-X	optical sensor	$206	14	200	single source	no EOL commitment
FAT-P0073	part 4390-G	gearbox	$406	10	300	qualification in progress	no EOL commitment
FAT-P0074	part 3390-H	controller board	$220	18	250	single source	last-time-buy notice 12 months
FAT-P0075	part 7156-M	castor assembly	$2,034	8	600	single source	EOL notice 6 months
FAT-P0076	part 2486-S	castor assembly	$1,952	22	400	single source	EOL notice 6 months
FAT-P0077	part 9715-G	encoder	$1,238	8	400	single source	EOL notice 6 months
FAT-P0078	part 6741-S	gearbox	$1,720	5	450	single source	EOL notice 6 months
FAT-P0079	part 5190-E	battery module	$461	6	50	dual sourced	last-time-buy notice 12 months
FAT-P0080	part 6164-Y	castor assembly	$1,636	6	50	dual sourced	no EOL commitment
FAT-P0081	part 1527-V	controller board	$1,599	14	450	qualification in progress	EOL notice 6 months
FAT-P0082	part 4723-Y	drive unit	$766	12	450	qualification in progress	no EOL commitment
FAT-P0083	part 6597-G	castor assembly	$144	20	400	dual sourced	last-time-buy notice 12 months
FAT-P0084	part 3153-A	optical sensor	$2,238	12	100	qualification in progress	last-time-buy notice 12 months
FAT-P0085	part 4467-G	battery module	$2,283	9	500	dual sourced	no EOL commitment
FAT-P0086	part 3107-B	battery module	$1,206	14	550	single source	EOL notice 6 months
FAT-P0087	part 8085-G	controller board	$1,230	4	250	single source	EOL notice 6 months
FAT-P0088	part 8178-B	harness	$179	23	50	dual sourced	no EOL commitment
FAT-P0089	part 8720-X	castor assembly	$1,708	11	250	qualification in progress	EOL notice 6 months

Fathom price line	Part number	Description	Unit price	Lead time weeks	MOQ	Sourcing	End-of-life notice
FAT-P0090	part 1262-O	battery module	$491	8	400	dual sourced	last-time-buy notice 12 months
FAT-P0091	part 1530-S	drive unit	$2,416	24	400	single source	no EOL commitment
FAT-P0092	part 8811-P	optical sensor	$2,283	20	100	qualification in progress	last-time-buy notice 12 months

2. Scope of supply and orders

Fathom bears the risk that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. As a matter of construction, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Ontario is where Fathom runs systems integration operations across 1 site, and the Reseller and Deal Registration Agreement follows that footprint. Because Fathom operates in systems integration, the practical burden of this clause falls on its Ontario operation, and Article 10 (Change Control) governs how it is measured.

Fathom may require that acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. Materially, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Because Fathom is a Ontario systems integration business with 1 site, the Reseller and Deal Registration Agreement devolves this to the site manager. The Fathom relationship is managed against Article 7 (Service Levels) at each quarterly review, and any variance is minuted there rather than in the Order.

As between Fathom and the Provider, the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. On the negotiated text, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Site count matters here: Fathom has 1 site, and the Reseller and Deal Registration Agreement treats each as a separate delivery point. Fathom has taken the point up once since signature; the correspondence is filed against Article 12 (Intellectual Property) and did not result in an amendment.

Article 3 (Scope of Supply) of the Reseller and Deal Registration Agreement is to be construed so that title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. In effect, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Running 1 site in systems integration, Fathom takes this obligation at site level rather than centrally under the Reseller and Deal Registration Agreement. The obligation as it applies to Fathom was tightened at signature, and Article 14 (Indemnities) carries the negotiated wording rather than the standard wording.

3. Delivery, title and risk

Fathom bears the risk that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. By design, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Site count matters here: Fathom has 1 site, and the Reseller and Deal Registration Agreement treats each as a separate delivery point. Nothing in the Fathom negotiation history qualifies Article 5 (Delivery and Title), and a reviewer should not read the pre-signature drafts as doing so.

Fathom has agreed, and the Provider has accepted, that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. As drafted, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Fathom runs 1 site from Ontario in systems integration, so the Reseller and Deal Registration Agreement is administered locally and this clause is applied per site. Notices under Article 15 (Limitation of Liability) go to the contracting entity named in the recital and not to any Fathom affiliate that may operate a site.

Fathom Mobility Systems Ltd has notified the Provider that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. On the face of the clause, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. For Fathom, a systems integration operator running 1 site out of Ontario, the point matters because the Reseller and Deal Registration Agreement is administered site by site. Nothing in the Fathom negotiation history qualifies Article 7 (Service Levels), and a reviewer should not read the pre-signature drafts as doing so.

Subject to Article 8 (Acceptance), the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. In point of remedy, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. In systems integration the burden of this sits with operations, and Fathom discharges it across 1 site under the Reseller and Deal Registration Agreement. Fathom has taken the point up once since signature; the correspondence is filed against Article 12 (Intellectual Property) and did not result in an amendment.

Fathom reseller agreement - Schedule 5 - Notices, Periods and Addressees

Fathom notice type	Subject	Period	Addressee	Method	Deemed given
FAT-N001	termination for cause	35 days	Chief Operating Officer	email with acknowledgement	on despatch
FAT-N002	assignment request	25 days	designated account executive	portal notice	on despatch
FAT-N003	renewal election	50 days	designated account executive	email with acknowledgement	on receipt
FAT-N004	non-renewal	30 days	General Counsel	portal notice	on the second business day after despatch
FAT-N005	assignment request	25 days	Contracts Manager	courier only	on the second business day after despatch
FAT-N006	service credit claim	80 days	Contracts Manager	courier only	on the second business day after despatch
FAT-N007	service credit claim	60 days	Contracts Manager	portal notice	on the second business day after despatch
FAT-N008	force majeure	80 days	designated account executive	portal notice	on the second business day after despatch
FAT-N009	force majeure	25 days	Contracts Manager	courier and email	on receipt
FAT-N010	change of control	25 days	designated account executive	portal notice	on receipt
FAT-N011	price adjustment	20 days	Contracts Manager	portal notice	on despatch
FAT-N012	service credit claim	90 days	General Counsel	portal notice	on the second business day after despatch
FAT-N013	assignment request	25 days	General Counsel	courier and email	on the second business day after despatch
FAT-N014	force majeure	15 days	Contracts Manager	courier only	on the second business day after despatch
FAT-N015	termination for cause	85 days	Chief Operating Officer	courier and email	on the second business day after despatch
FAT-N016	non-renewal	40 days	General Counsel	email with acknowledgement	on receipt
FAT-N017	non-renewal	60 days	Chief Operating Officer	portal notice	on despatch
FAT-N018	breach	55 days	Contracts Manager	email with acknowledgement	on despatch
FAT-N019	breach	30 days	Chief Operating Officer	courier and email	on the second business day after despatch
FAT-N020	force majeure	50 days	Chief Operating Officer	courier and email	on receipt
FAT-N021	termination for cause	70 days	Chief Operating	courier and email	on receipt

Fathom notice type	Subject	Period	Addressee	Method	Deemed given
			Officer		
FAT-N022	assignment request	10 days	Chief Operating Officer	portal notice	on despatch
FAT-N023	assignment request	50 days	General Counsel	email with acknowledgement	on the second business day after despatch
FAT-N024	breach	30 days	Chief Operating Officer	email with acknowledgement	on receipt
FAT-N025	service credit claim	65 days	Chief Operating Officer	email with acknowledgement	on despatch
FAT-N026	renewal election	85 days	Chief Operating Officer	courier only	on receipt
FAT-N027	force majeure	35 days	Chief Operating Officer	courier only	on receipt
FAT-N028	assignment request	35 days	Contracts Manager	email with acknowledgement	on receipt
FAT-N029	service credit claim	50 days	designated account executive	courier and email	on the second business day after despatch
FAT-N030	force majeure	85 days	Chief Operating Officer	portal notice	on despatch
FAT-N031	termination for cause	5 days	General Counsel	courier and email	on receipt
FAT-N032	assignment request	15 days	General Counsel	portal notice	on the second business day after despatch
FAT-N033	change of control	25 days	designated account executive	email with acknowledgement	on the second business day after despatch
FAT-N034	force majeure	35 days	General Counsel	courier and email	on the second business day after despatch
FAT-N035	service credit claim	85 days	designated account executive	portal notice	on the second business day after despatch
FAT-N036	assignment request	25 days	General Counsel	courier and email	on the second business day after despatch
FAT-N037	breach	45 days	Contracts Manager	courier only	on receipt
FAT-N038	price adjustment	10 days	Contracts Manager	portal notice	on receipt
FAT-N039	service credit claim	50 days	General Counsel	portal notice	on despatch
FAT-N040	assignment request	70 days	Contracts Manager	courier only	on despatch
FAT-N041	service credit claim	25 days	General Counsel	courier and email	on receipt
FAT-N042	assignment request	40 days	General Counsel	portal notice	on despatch
FAT-N043	change of control	30 days	Chief Operating Officer	courier only	on despatch
FAT-N044	breach	60 days	General Counsel	courier only	on receipt
FAT-N045	assignment request	5 days	designated account executive	courier and email	on receipt
FAT-N046	non-renewal	45 days	Contracts Manager	courier only	on the second business day after despatch
FAT-N047	service credit claim	70 days	General Counsel	courier only	on despatch
FAT-N048	price adjustment	40 days	General Counsel	courier and email	on the second business day after despatch
FAT-N049	non-renewal	20 days	Contracts Manager	email with acknowledgement	on despatch
FAT-N050	termination for cause	30 days	designated account executive	email with acknowledgement	on receipt
FAT-N051	termination for cause	85 days	designated account executive	courier and email	on the second business day after despatch
FAT-N052	breach	80 days	Contracts Manager	portal notice	on despatch
FAT-N053	renewal election	10 days	designated account executive	courier only	on despatch
FAT-N054	breach	5 days	General Counsel	courier and email	on the second business day after despatch
FAT-N055	price adjustment	80 days	General Counsel	courier and email	on receipt
FAT-N056	assignment request	10 days	Chief Operating	courier and email	on the second

Fathom notice type	Subject	Period	Addressee	Method	Deemed given
			Officer		business day after despatch
FAT-N057	service credit claim	80 days	Contracts Manager	courier only	on receipt
FAT-N058	service credit claim	40 days	Contracts Manager	email with acknowledgement	on the second business day after despatch
FAT-N059	force majeure	35 days	Contracts Manager	courier and email	on the second business day after despatch
FAT-N060	price adjustment	85 days	General Counsel	courier and email	on the second business day after despatch
FAT-N061	assignment request	80 days	General Counsel	portal notice	on despatch
FAT-N062	renewal election	35 days	Chief Operating Officer	courier only	on despatch
FAT-N063	force majeure	25 days	General Counsel	courier only	on the second business day after despatch
FAT-N064	force majeure	20 days	General Counsel	email with acknowledgement	on receipt
FAT-N065	service credit claim	15 days	designated account executive	email with acknowledgement	on receipt
FAT-N066	renewal election	20 days	Chief Operating Officer	courier only	on receipt
FAT-N067	change of control	65 days	Chief Operating Officer	portal notice	on receipt
FAT-N068	non-renewal	70 days	General Counsel	courier and email	on despatch
FAT-N069	change of control	35 days	designated account executive	courier and email	on receipt
FAT-N070	assignment request	30 days	General Counsel	courier only	on the second business day after despatch
FAT-N071	assignment request	30 days	General Counsel	courier only	on receipt
FAT-N072	non-renewal	65 days	designated account executive	courier only	on despatch
FAT-N073	force majeure	50 days	designated account executive	portal notice	on despatch
FAT-N074	service credit claim	80 days	General Counsel	courier and email	on the second business day after despatch
FAT-N075	assignment request	20 days	Chief Operating Officer	email with acknowledgement	on despatch
FAT-N076	non-renewal	20 days	Contracts Manager	portal notice	on receipt
FAT-N077	service credit claim	15 days	Contracts Manager	courier and email	on the second business day after despatch
FAT-N078	assignment request	75 days	Chief Operating Officer	courier and email	on receipt

4. Fees, invoicing and escalation

Neither Fathom nor the Provider may treat Article 15 (Limitation of Liability) as permitting the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. As it bites, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Running 1 site in systems integration, Fathom takes this obligation at site level rather than centrally under the Reseller and Deal Registration Agreement. Administration of this obligation for Fathom sits with the account team rather than with central contracts, and Article 15 (Limitation of Liability) is where it is evidenced.

On a proper construction of Schedule 5, the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. As a remedy, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. 1 site in Ontario means Fathom applies the Reseller and Deal Registration Agreement through its regional operations team rather than through head office. Because Fathom operates in systems integration, the practical burden of this clause falls on its Ontario operation, and Article 12 (Intellectual Property) governs how it is measured.

The Provider has undertaken to Fathom that the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. As it bites, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. 1 site in Ontario means Fathom applies the Reseller and Deal Registration Agreement through its regional operations team rather than through head office. The Fathom relationship is managed against Article 13 (Licences) at each quarterly review, and any variance is minuted there rather than in the Order.

Article 6 (Fees and Payment) provides that the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. Tighter here than standard: where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. In systems integration the burden of this sits with operations, and Fathom discharges it across 1 site under the Reseller and Deal Registration Agreement. For a reseller of Fathom's size the clause is unremarkable, but Article 19 (Confidentiality) is drafted more tightly here than in the Provider's standard form.

5. Service levels and credits

The Provider warrants to Fathom that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. On the negotiated text, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Fathom runs 1 site from Ontario in systems integration, so the Reseller and Deal Registration Agreement is administered locally and this clause is applied per site. Administration of this obligation for Fathom sits with the account team rather than with central contracts, and Article 2 (Definitions) is where it is evidenced.

Fathom Mobility Systems Ltd has notified the Provider that the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. On this point, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Because Fathom is a Ontario systems integration business with 1 site, the Reseller and Deal Registration Agreement devolves this to the site manager. Because Fathom operates in systems integration, the practical burden of this clause falls on its Ontario operation, and Article 16 (Term and Termination) governs how it is measured.

Nothing in Exhibit D entitles Fathom to assume that the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. Negotiated position: a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. This bites at Fathom's 1 site, since a systems integration operator administers the Reseller and Deal Registration Agreement where the units work. Because Fathom operates in systems integration, the practical burden of this clause falls on its Ontario operation, and Article 19 (Confidentiality) governs how it is measured.

Except as Article 10 (Change Control) permits, the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. In substance, performance is measured against the exhibit and not against any statement made in the parties' correspondence. For Fathom, a systems integration operator running 1 site out of Ontario, the point matters because the Reseller and Deal Registration Agreement is administered site by site. Fathom has taken the point up once since signature; the correspondence is filed against Article 21 (Governing Law and Disputes) and did not result in an amendment.

6. Acceptance and change control

Nothing in Exhibit B entitles Fathom to assume that spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. As a matter of construction, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. Fathom runs 1 site from Ontario in systems integration, so the Reseller and Deal Registration Agreement is administered locally and this clause is applied per site. For a reseller of Fathom's size the clause is unremarkable, but Article 7 (Service Levels) is drafted more tightly here than in the Provider's standard form.

Nothing in Schedule 2 entitles Fathom to assume that acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have

described it. By design, performance is measured against the exhibit and not against any statement made in the parties' correspondence. Fathom runs 1 site from Ontario in systems integration, so the Reseller and Deal Registration Agreement is administered locally and this clause is applied per site. Where Fathom has raised a query the Provider has answered by reference to Article 4 (Orders and Quantities), and the exchange is on the contract file.

Where Article 4 (Orders and Quantities) applies, the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. As a matter of construction, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Because Fathom is a Ontario systems integration business with 1 site, the Reseller and Deal Registration Agreement devolves this to the site manager. Because Fathom operates in systems integration, the practical burden of this clause falls on its Ontario operation, and Article 16 (Term and Termination) governs how it is measured.

Under Article 16 (Term and Termination) of the Reseller and Deal Registration Agreement, on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. As a matter of construction, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Fathom runs 1 site from Ontario in systems integration, so the Reseller and Deal Registration Agreement is administered locally and this clause is applied per site. For a reseller of Fathom's size the clause is unremarkable, but Article 10 (Change Control) is drafted more tightly here than in the Provider's standard form.

Fathom reseller agreement - Exhibit A - Fee Schedule and Annual Escalator

Fathom fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
FAT-F001	AMR-400 heavy unit	6	$2,452	$14,712	5.3%	annually on the anniversary
FAT-F002	safety scanner kit	39	$2,927	$114,153	4.4%	annually each January
FAT-F003	tote carrier	10	$1,972	$19,720	2.6%	annually each January
FAT-F004	AMR-400 heavy unit	7	$3,595	$25,165	2.5%	on renewal only
FAT-F005	gateway appliance	39	$4,191	$163,449	3.6%	on renewal only
FAT-F006	fleet controller	14	$3,366	$47,124	2.2%	not escalated
FAT-F007	gateway appliance	39	$3,864	$150,696	4.3%	not escalated
FAT-F008	tote carrier	11	$7,960	$87,560	2.7%	annually on the anniversary
FAT-F009	tote carrier	13	$3,775	$49,075	2.5%	on renewal only
FAT-F010	lift attachment	22	$3,025	$66,550	3.4%	annually each January
FAT-F011	gateway appliance	24	$8,009	$192,216	4.1%	annually each January
FAT-F012	gateway appliance	28	$7,677	$214,956	2.3%	not escalated
FAT-F013	AMR-200 mobile unit	24	$5,004	$120,096	2.7%	annually on the anniversary
FAT-F014	fleet controller	40	$3,552	$142,080	3.0%	on renewal only
FAT-F015	AMR-200 mobile unit	34	$3,410	$115,940	3.3%	annually each January
FAT-F016	fleet controller	9	$5,467	$49,203	3.2%	on renewal only
FAT-F017	lift attachment	38	$4,383	$166,554	2.6%	annually each January
FAT-F018	fleet controller	8	$5,025	$40,200	2.2%	not escalated
FAT-F019	safety scanner kit	6	$3,114	$18,684	4.6%	annually each January
FAT-F020	charge dock	5	$6,087	$30,435	4.2%	annually each January
FAT-F021	fleet controller	38	$3,577	$135,926	5.5%	annually on the anniversary
FAT-F022	gateway appliance	30	$1,811	$54,330	3.9%	not escalated
FAT-F023	AMR-200 mobile unit	18	$2,709	$48,762	3.2%	not escalated
FAT-F024	AMR-200 mobile	40	$6,005	$240,200	2.2%	annually each

Fathom fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
	unit					January
FAT-F025	tote carrier	18	$6,640	$119,520	2.6%	not escalated
FAT-F026	charge dock	4	$2,917	$11,668	3.4%	annually on the anniversary
FAT-F027	safety scanner kit	22	$6,613	$145,486	3.2%	on renewal only
FAT-F028	fleet controller	31	$4,202	$130,262	2.3%	not escalated
FAT-F029	tote carrier	23	$2,608	$59,984	5.4%	on renewal only
FAT-F030	fleet controller	13	$3,002	$39,026	4.0%	annually on the anniversary
FAT-F031	AMR-400 heavy unit	33	$5,718	$188,694	2.6%	on renewal only
FAT-F032	charge dock	41	$1,438	$58,958	3.7%	not escalated
FAT-F033	AMR-400 heavy unit	28	$5,593	$156,604	2.6%	on renewal only
FAT-F034	AMR-200 mobile unit	12	$3,061	$36,732	4.5%	not escalated
FAT-F035	tote carrier	12	$7,345	$88,140	3.4%	annually on the anniversary
FAT-F036	lift attachment	14	$4,391	$61,474	3.3%	on renewal only
FAT-F037	fleet controller	17	$7,471	$127,007	5.3%	annually each January
FAT-F038	charge dock	28	$1,575	$44,100	2.0%	annually on the anniversary
FAT-F039	AMR-400 heavy unit	6	$1,695	$10,170	4.7%	on renewal only
FAT-F040	AMR-200 mobile unit	25	$7,021	$175,525	4.5%	on renewal only
FAT-F041	tote carrier	2	$1,796	$3,592	3.0%	annually on the anniversary
FAT-F042	fleet controller	7	$6,703	$46,921	3.3%	on renewal only
FAT-F043	AMR-400 heavy unit	8	$7,805	$62,440	2.0%	not escalated
FAT-F044	tote carrier	18	$3,266	$58,788	3.4%	annually each January
FAT-F045	AMR-200 mobile unit	33	$5,857	$193,281	5.8%	on renewal only
FAT-F046	gateway appliance	15	$3,463	$51,945	4.9%	on renewal only
FAT-F047	fleet controller	33	$8,888	$293,304	3.0%	not escalated
FAT-F048	safety scanner kit	30	$2,158	$64,740	3.5%	on renewal only
FAT-F049	tote carrier	24	$4,991	$119,784	3.8%	on renewal only
FAT-F050	charge dock	41	$7,728	$316,848	5.2%	not escalated
FAT-F051	charge dock	38	$3,316	$126,008	3.5%	on renewal only
FAT-F052	lift attachment	9	$6,571	$59,139	4.7%	annually on the anniversary
FAT-F053	fleet controller	18	$9,693	$174,474	3.5%	not escalated
FAT-F054	gateway appliance	15	$8,735	$131,025	4.8%	annually on the anniversary
FAT-F055	AMR-200 mobile unit	41	$8,259	$338,619	5.8%	annually each January
FAT-F056	AMR-200 mobile unit	28	$6,816	$190,848	5.1%	on renewal only
FAT-F057	AMR-200 mobile unit	21	$5,858	$123,018	4.5%	annually each January
FAT-F058	safety scanner kit	3	$3,028	$9,084	3.8%	annually on the anniversary
FAT-F059	AMR-200 mobile unit	22	$8,883	$195,426	2.2%	annually on the anniversary
FAT-F060	lift attachment	31	$5,013	$155,403	3.2%	on renewal only
FAT-F061	charge dock	38	$3,475	$132,050	4.7%	annually each January
FAT-F062	tote carrier	16	$5,414	$86,624	4.9%	annually each January
FAT-F063	fleet controller	28	$8,088	$226,464	3.9%	annually on the anniversary
FAT-F064	fleet controller	14	$4,934	$69,076	2.5%	on renewal only
FAT-F065	AMR-200 mobile unit	8	$2,448	$19,584	2.7%	annually each January
FAT-F066	tote carrier	17	$2,444	$41,548	3.3%	on renewal only

Fathom fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
FAT-F067	gateway appliance	19	$6,259	$118,921	3.8%	annually each January
FAT-F068	tote carrier	21	$1,157	$24,297	2.2%	annually on the anniversary
FAT-F069	gateway appliance	15	$8,798	$131,970	3.2%	on renewal only
FAT-F070	AMR-200 mobile unit	9	$6,231	$56,079	5.3%	annually on the anniversary
FAT-F071	AMR-200 mobile unit	18	$2,165	$38,970	2.3%	annually on the anniversary
FAT-F072	AMR-400 heavy unit	22	$8,037	$176,814	4.0%	not escalated
FAT-F073	lift attachment	39	$4,588	$178,932	4.3%	annually each January
FAT-F074	AMR-400 heavy unit	24	$5,353	$128,472	3.8%	annually each January
FAT-F075	fleet controller	34	$1,373	$46,682	5.6%	on renewal only
FAT-F076	gateway appliance	21	$4,350	$91,350	3.8%	not escalated
FAT-F077	AMR-400 heavy unit	20	$6,119	$122,380	5.3%	annually on the anniversary
FAT-F078	lift attachment	12	$1,422	$17,064	4.3%	on renewal only
FAT-F079	charge dock	14	$9,745	$136,430	3.0%	on renewal only
FAT-F080	fleet controller	24	$5,326	$127,824	3.7%	not escalated
FAT-F081	gateway appliance	28	$7,351	$205,828	5.1%	annually each January
FAT-F082	AMR-200 mobile unit	17	$8,594	$146,098	5.0%	annually on the anniversary
FAT-F083	gateway appliance	25	$2,690	$67,250	2.2%	annually each January
FAT-F084	fleet controller	30	$1,792	$53,760	2.0%	on renewal only
FAT-F085	lift attachment	27	$9,713	$262,251	3.9%	annually each January
FAT-F086	gateway appliance	26	$5,764	$149,864	4.3%	annually on the anniversary
FAT-F087	lift attachment	13	$8,953	$116,389	5.6%	on renewal only
FAT-F088	safety scanner kit	25	$3,766	$94,150	5.4%	annually on the anniversary

7. Data, intellectual property and licences

The Provider has undertaken to Fathom that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. Strictly, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. 1 site in Ontario means Fathom applies the Reseller and Deal Registration Agreement through its regional operations team rather than through head office. Fathom has taken the point up once since signature; the correspondence is filed against Article 18 (Assignment) and did not result in an amendment.

Read with Schedule 2, on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. As to enforcement, performance is measured against the exhibit and not against any statement made in the parties' correspondence. This bites at Fathom's 1 site, since a systems integration operator administers the Reseller and Deal Registration Agreement where the units work. For a reseller of Fathom's size the clause is unremarkable, but Article 12 (Intellectual Property) is drafted more tightly here than in the Provider's standard form.

Fathom and the Provider agree that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. On the operative wording, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. In systems integration the burden of this sits with operations, and Fathom discharges it across 1 site under the Reseller and Deal Registration Agreement. Nothing in the Fathom negotiation history qualifies Article 20 (Notices), and a reviewer should not read the pre-signature drafts as doing so.

Where Article 9 (Customer Obligations) applies, the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. As between them, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. 1 site in Ontario means Fathom applies the Reseller and Deal Registration Agreement through its regional operations team rather than through head office. Because Fathom operates in systems integration, the practical burden of this clause falls on its Ontario operation, and Article 4 (Orders and Quantities) governs how it is measured.

8. Indemnities and limitation of liability

Fathom and the Provider agree that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. As drafted, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Because Fathom is a Ontario systems integration business with 1 site, the Reseller and Deal Registration Agreement devolves this to the site manager. Notices under Article 11 (Data and Telemetry) go to the contracting entity named in the recital and not to any Fathom affiliate that may operate a site.

Fathom pays the fees under Exhibit C in consideration of the Provider's undertaking that the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. On the face of the clause, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. The Reseller and Deal Registration Agreement reaches each of Fathom's 1 site separately, which is how a systems integration operator in Ontario administers it. For a reseller of Fathom's size the clause is unremarkable, but Article 6 (Fees and Payment) is drafted more tightly here than in the Provider's standard form.

Fathom Mobility Systems Ltd is entitled to require that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. As drafted, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. This bites at Fathom's 1 site, since a systems integration operator administers the Reseller and Deal Registration Agreement where the units work. The Fathom relationship is managed against Article 18 (Assignment) at each quarterly review, and any variance is minuted there rather than in the Order.

Where Article 20 (Notices) applies, title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. Deliberately so: the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. 1 site in Ontario means Fathom applies the Reseller and Deal Registration Agreement through its regional operations team rather than through head office. The Fathom relationship is managed against Article 6 (Fees and Payment) at each quarterly review, and any variance is minuted there rather than in the Order.

Fathom reseller agreement - Schedule 2 - Sites and Operating Patterns

Fathom site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
FAT-S001	Larkspur facility	15	2026-02-13	two shifts	Provider furnished	accepted with punch list
FAT-S002	Granite facility	35	2024-11-12	continuous	shared	pending acceptance
FAT-S003	Mesa facility	4	2024-05-23	single shift	Customer furnished	pending acceptance
FAT-S004	Mesa facility	32	2025-08-16	two shifts	Provider furnished	pending acceptance
FAT-S005	Harborline facility	8	2026-02-19	single shift	Customer furnished	accepted
FAT-S006	Evergreen facility	20	2025-10-12	two shifts	Provider furnished	pending acceptance
FAT-S007	Evergreen facility	17	2025-05-15	two shifts	Provider furnished	accepted with punch list
FAT-S008	Fathom facility	39	2025-09-01	two shifts	shared	not commenced
FAT-S009	Dunbar facility	18	2026-05-21	continuous	shared	not commenced
FAT-S010	Fathom facility	14	2024-12-16	single shift	Provider furnished	accepted

Fathom site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
FAT-S011	Granite facility	25	2026-02-22	two shifts	Customer furnished	not commenced
FAT-S012	Crestline facility	39	2024-01-06	continuous	shared	not commenced
FAT-S013	Keystone facility	31	2025-04-28	two shifts	Provider furnished	accepted
FAT-S014	Keystone facility	9	2024-05-01	continuous	Provider furnished	pending acceptance
FAT-S015	Dunbar facility	15	2025-01-19	continuous	Provider furnished	not commenced
FAT-S016	Meridian facility	30	2026-12-26	continuous	Customer furnished	not commenced
FAT-S017	Meridian facility	39	2025-09-25	continuous	shared	accepted with punch list
FAT-S018	Evergreen facility	34	2026-12-26	continuous	shared	not commenced
FAT-S019	Mesa facility	14	2024-07-04	two shifts	Customer furnished	not commenced
FAT-S020	Crestline facility	39	2025-04-01	single shift	shared	pending acceptance
FAT-S021	Mesa facility	10	2025-02-07	two shifts	Provider furnished	not commenced
FAT-S022	Dunbar facility	4	2025-05-12	single shift	shared	accepted with punch list
FAT-S023	Dunbar facility	5	2025-03-12	single shift	Provider furnished	accepted
FAT-S024	Granite facility	34	2026-11-06	single shift	Customer furnished	accepted
FAT-S025	Harborline facility	15	2025-11-27	continuous	shared	accepted
FAT-S026	Mesa facility	32	2026-03-18	two shifts	Provider furnished	accepted
FAT-S027	Larkspur facility	28	2024-03-17	continuous	Provider furnished	pending acceptance
FAT-S028	Dunbar facility	25	2025-12-04	continuous	Customer furnished	accepted
FAT-S029	Larkspur facility	23	2025-04-01	two shifts	shared	accepted
FAT-S030	Dunbar facility	10	2024-06-10	single shift	Provider furnished	pending acceptance
FAT-S031	Dunbar facility	31	2025-07-04	single shift	shared	pending acceptance
FAT-S032	Meridian facility	21	2024-06-08	continuous	Customer furnished	accepted
FAT-S033	Juniper facility	6	2024-10-28	single shift	Customer furnished	accepted with punch list
FAT-S034	Keystone facility	8	2024-04-10	single shift	shared	accepted
FAT-S035	Mesa facility	9	2025-08-21	continuous	shared	accepted with punch list
FAT-S036	Dunbar facility	36	2026-11-13	continuous	Provider furnished	not commenced
FAT-S037	Harborline facility	32	2025-10-04	continuous	shared	pending acceptance
FAT-S038	Fathom facility	28	2025-09-23	continuous	Provider furnished	accepted with punch list
FAT-S039	Granite facility	12	2025-01-03	two shifts	Customer furnished	pending acceptance
FAT-S040	Mesa facility	32	2025-01-02	single shift	Customer furnished	accepted with punch list
FAT-S041	Dunbar facility	38	2025-12-02	two shifts	Provider furnished	accepted with punch list
FAT-S042	Juniper facility	27	2024-11-14	single shift	Customer furnished	not commenced
FAT-S043	Mesa facility	25	2025-06-19	continuous	Customer furnished	accepted with punch list
FAT-S044	Evergreen facility	7	2025-04-09	two shifts	shared	accepted with punch list
FAT-S045	Keystone facility	7	2024-06-22	continuous	Customer furnished	pending acceptance
FAT-S046	Fathom facility	12	2024-05-03	continuous	Customer furnished	not commenced
FAT-S047	Larkspur facility	19	2025-01-04	two shifts	shared	not commenced

Fathom site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
FAT-S048	Juniper facility	36	2026-07-11	single shift	Provider furnished	accepted with punch list
FAT-S049	Meridian facility	12	2025-11-04	two shifts	Customer furnished	pending acceptance
FAT-S050	Crestline facility	16	2025-11-26	single shift	Customer furnished	not commenced
FAT-S051	Fathom facility	26	2025-07-27	two shifts	shared	not commenced
FAT-S052	Larkspur facility	14	2024-02-12	single shift	Customer furnished	accepted with punch list
FAT-S053	Meridian facility	36	2024-06-05	two shifts	Customer furnished	accepted with punch list
FAT-S054	Granite facility	33	2024-04-05	continuous	shared	not commenced
FAT-S055	Juniper facility	36	2025-05-22	single shift	shared	not commenced
FAT-S056	Crestline facility	7	2024-08-08	two shifts	Provider furnished	not commenced
FAT-S057	Juniper facility	26	2026-11-09	single shift	shared	not commenced
FAT-S058	Dayton facility	7	2026-05-12	single shift	Provider furnished	accepted
FAT-S059	Fathom facility	6	2025-08-03	two shifts	shared	pending acceptance
FAT-S060	Meridian facility	19	2024-12-14	two shifts	Provider furnished	pending acceptance
FAT-S061	Granite facility	9	2026-09-13	single shift	Customer furnished	pending acceptance
FAT-S062	Evergreen facility	27	2024-12-07	single shift	shared	pending acceptance
FAT-S063	Evergreen facility	29	2025-04-22	continuous	shared	accepted with punch list
FAT-S064	Evergreen facility	21	2025-01-08	two shifts	Provider furnished	pending acceptance
FAT-S065	Larkspur facility	25	2024-01-22	two shifts	Customer furnished	accepted
FAT-S066	Dayton facility	37	2024-06-17	two shifts	shared	accepted
FAT-S067	Dunbar facility	32	2025-05-06	two shifts	Provider furnished	not commenced
FAT-S068	Juniper facility	37	2025-07-03	single shift	shared	accepted
FAT-S069	Keystone facility	10	2025-12-04	two shifts	Customer furnished	accepted
FAT-S070	Larkspur facility	28	2026-03-07	single shift	shared	not commenced
FAT-S071	Fathom facility	16	2025-03-16	single shift	shared	accepted
FAT-S072	Fathom facility	39	2026-03-01	two shifts	Provider furnished	accepted with punch list
FAT-S073	Crestline facility	11	2026-06-21	two shifts	Provider furnished	pending acceptance
FAT-S074	Granite facility	25	2026-04-28	two shifts	Provider furnished	accepted with punch list
FAT-S075	Harborline facility	23	2026-04-02	continuous	Customer furnished	not commenced
FAT-S076	Juniper facility	36	2024-03-28	two shifts	shared	not commenced
FAT-S077	Granite facility	29	2025-09-28	two shifts	Customer furnished	accepted with punch list
FAT-S078	Dayton facility	5	2026-10-24	two shifts	shared	accepted
FAT-S079	Evergreen facility	30	2026-02-11	continuous	shared	not commenced
FAT-S080	Crestline facility	27	2025-12-11	continuous	Customer furnished	accepted
FAT-S081	Evergreen facility	37	2025-04-04	two shifts	Customer furnished	accepted with punch list
FAT-S082	Granite facility	39	2026-01-25	single shift	Customer furnished	not commenced
FAT-S083	Larkspur facility	38	2026-04-12	single shift	Provider furnished	pending acceptance
FAT-S084	Granite facility	37	2026-05-18	single shift	shared	not commenced

9. Term, termination and transition

Save as Schedule 5 otherwise provides, the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. As agreed, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised

officer. This bites at Fathom's 1 site, since a systems integration operator administers the Reseller and Deal Registration Agreement where the units work. Where Fathom has raised a query the Provider has answered by reference to Article 17 (Transition Assistance), and the exchange is on the contract file.

Fathom acknowledges that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. Practically, where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. 1 site in Ontario means Fathom applies the Reseller and Deal Registration Agreement through its regional operations team rather than through head office. Notices under Article 21 (Governing Law and Disputes) go to the contracting entity named in the recital and not to any Fathom affiliate that may operate a site.

Fathom Mobility Systems Ltd undertakes that confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. In substance, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. 1 site in Ontario means Fathom applies the Reseller and Deal Registration Agreement through its regional operations team rather than through head office. Because Fathom operates in systems integration, the practical burden of this clause falls on its Ontario operation, and Article 14 (Indemnities) governs how it is measured.

The parties have recorded in Exhibit D that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. Negotiated position: the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Site count matters here: Fathom has 1 site, and the Reseller and Deal Registration Agreement treats each as a separate delivery point. For a reseller of Fathom's size the clause is unremarkable, but Article 17 (Transition Assistance) is drafted more tightly here than in the Provider's standard form.

10. Assignment, notices and general

Article 18 (Assignment) provides that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. As agreed, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Fathom runs 1 site from Ontario in systems integration, so the Reseller and Deal Registration Agreement is administered locally and this clause is applied per site. The obligation as it applies to Fathom was tightened at signature, and Article 11 (Data and Telemetry) carries the negotiated wording rather than the standard wording.

Fathom acknowledges that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. Intended effect: the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Fathom runs 1 site from Ontario in systems integration, so the Reseller and Deal Registration Agreement is administered locally and this clause is applied per site. The obligation as it applies to Fathom was tightened at signature, and Article 11 (Data and Telemetry) carries the negotiated wording rather than the standard wording.

Fathom retains the right, notwithstanding Article 17 (Transition Assistance), to require that title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. In substance, performance is measured against the exhibit and not against any statement made in the parties' correspondence. In systems integration the burden of this sits with operations, and Fathom discharges it across 1 site under the Reseller and Deal Registration Agreement. Nothing in the Fathom negotiation history qualifies Article 15 (Limitation of Liability), and a reviewer should not read the pre-signature drafts as doing so.

Fathom may require that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. Practically, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. The Reseller and Deal Registration Agreement reaches each of Fathom's 1 site separately, which is how a systems integration operator in Ontario administers it. Notices under Article 13 (Licences) go to the contracting entity named in the recital and not to any Fathom affiliate that may operate a site.